

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA**

██████████, <i>et al.</i>, <i>Plaintiffs,</i> v. DISTRICT OF COLUMBIA, et al., <i>Defendants.</i>	
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**PLAINTIFFS' MEMORANDUM OF POINTS AND AUTHORITIES IN OPPOSITION
TO DEFENDANT OFFICER ██████████ MOTION TO DISMISS
PLAINTIFFS' AMENDED COMPLAINT AND MOTION FOR SUMMARY JUDGMENT**

Plaintiffs submit this Opposition, including supporting points and authorities, to Defendant ██████████'s Motion to Dismiss and Motion for Summary Judgment.

INTRODUCTION

The Court should DENY Defendant ██████████ Motion to Dismiss in part and DENY Defendant ██████████ Motion for Summary Judgment. First, Plaintiffs served Defendant ██████████ within 90 days of filing their First Amended Complaint; the First Amended Complaint was filed on November 17, 2021 and it was personally served on Defendant ██████████ on January 8, 2022 (see Affidavit of Process Server attached hereto as Ex. A). Second, Plaintiffs have alleged facts sufficient to state a claim upon which relief can be granted for all but one claim: Plaintiffs concede that their Fifth Amendment claims are encompassed in their Fourth Amendment claims and that the Fifth Amendment claims may be dismissed. Finally, there is a significant dispute as to an issue of material fact that makes Summary Judgment improper before Plaintiffs have had an opportunity to conduct discovery.

FACTS

Plaintiffs re-allege all the facts contained in their First Amended Complaint (Am. Compl.) and Plaintiffs' Statement of Facts in Dispute in Opposition to Defendant [REDACTED], Motion for Summary Judgment and incorporate them here by reference.

LEGAL STANDARDS

A. Motion to Dismiss

In order to survive a motion to dismiss, a Plaintiff must "plead factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Hettinga v. United States*, 677 F.3d 471 (D.C. Cir. 2012) (citing *Ashcroft v. Iqbal*, 556 U.S. 662 (2009)). Further, when evaluating a Rule 12(b)(6) motion, the Court "must construe the complaint in favor of the plaintiff, who must be granted the benefit of all inferences that can be derived from the facts alleged." *Id. See also Caldwell v. Hammonds*, 53 F.Supp.2d 1 (D.C. Cir. 1999) ("the factual allegations of the complaint must be presumed true and construed liberally in favor of the plaintiff.").

B. Summary Judgment

A motion for summary judgment "should be granted if and only if it is shown that there is no genuine issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." *Danesh v. Rite Aid Corp.*, 39 F.Supp.2d 7 (D.C. Cir. 1999) (citing Fed.R.Civ.P. 56(c)). The courts have warned that summary judgment is a "lethal weapon, and courts must be mindful of its aims and targets and beware of overkill in its use..." *KangaROOS U.S.A., Inc. v. Caldor, Inc.*, 778 F.2d 1571 (Fed. Cir. 1985). Further, "credibility determinations, the weighing

of the evidence, and the drawing of legitimate inferences from the facts are jury functions, not those of a judge[.]” *United States v. \$17,900.00 in U.S. Currency*, 859 F.3d 1085 (D.C. Cir. 2017) (citing *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242 (1986)).

ARGUMENT

I. Defendant [REDACTED] was properly served.

The Federal Rule of Civil Procedure state:

If a defendant is not served within 90 days after the complaint is filed, the court—on motion or on its own after notice to the plaintiff—must dismiss the action without prejudice against that defendant or order that service be made within a specified time. But *if the plaintiff shows good cause for the failure, the court must extend the time for service* for an appropriate period.

Fed. R. Civ. P. 4(m) (emphasis added).

The D.C. Court of Appeals has made it clear that dismissal should not be granted if proper service has been made, even if that service contains a “technical defect.” *See, e.g., Jordan v. U.S.*, 694 F.2d 833 (D.C. Cir. 1982) (holding that when a party suffers no prejudice for a technical defect in service the court should not grant dismissal, “especially [...] when dismissal signals the demise of all or some of the plaintiff’s claims.”) (citing *Piendak v. Local Board No. 5*, 318 F.Supp. 1393 (W.D.Pa.1970) (although plaintiff did not serve the U.S. Attorney and Attorney General as required by the rules, because U.S. Attorney vigorously represented United States throughout the proceedings, adequate notice had been afforded to the United States and no prejudice resulted from failure to comply with rules... .)) In *Jordan*, the Court positively cites a 6th Circuit case in which service was deemed proper 5 years after the initial complaint was filed, but service was timely effected after the government filed their amended complaint: “The government was awarded a default judgment in 1970. In 1975 the judgment was vacated and declared void against an individual defendant because of failure properly to effect service on that

defendant. The government filed an amended complaint in 1975 and ten days thereafter properly served the defendant.” *Jordan v. U.S.*, 694 F.2d 833 (D.C. Cir. 1982) (citing *U.S. v. Wahl*, 583 F.2d 285 (6th Cir. 1978)).

Here, Plaintiffs attempted to serve Defendant [REDACTED], who is no longer with the Metro Police Department, multiple times and ran a skip trace, and were finally able to personally serve him on January 8, 2022 (Ex. A). Further, the Court’s October 18, 2021 Minute Order cited by Defendant [REDACTED] requiring Plaintiffs to effect service of the initial Complaint and file the proof of service by November 17, 2021 was effectively rendered moot when Plaintiffs filed their First Amended Complaint on November 17, 2021. Finally, the Attorney General’s Office for the District of Columbia, counsel for the Defendants, has filed a response to Plaintiffs’ First Amended Complaint as attorneys for Defendant [REDACTED]. Counsel for Defendants were properly served and timely notified of Plaintiffs’ initial Complaint and First Amended Complaint, despite the fact that they only now respond on behalf of Defendant [REDACTED]. Further, Defendant [REDACTED] was personally served on January 8, 2022 (Ex. A). To argue that failure to serve Defendant [REDACTED] within the 90-day time window after Plaintiffs filed their initial Complaint warrants dismissal of all claims against him in Plaintiffs’ First Amended Complaint is baffling and unsupported by the jurisprudence of this jurisdiction. Even if this court were to dismiss Plaintiffs’ First Amended Complaint, it would necessarily be without prejudice for the purpose of effecting proper service, *see* Fed. R. Civ. P. 4(m), which has already occurred.

For these reasons, the Court should find that Plaintiffs properly served Defendant [REDACTED] and deny his Motion to Dismiss.

II. Plaintiffs have alleged sufficient facts to state a claim upon which relief can be granted.

Plaintiffs have met the liberal pleading requirements of Rule 8(a)-(c) in their First Amended Complaint, pleading sufficient facts that state a claim upon which relief may be granted.

A. Plaintiffs' Fourth Amendment claims are supported by the facts asserted.

Plaintiffs concede that their Fifth Amendment claims are encompassed under the Fourth Amendment, while reasserting that they have pled sufficient, specific facts upon which relief can be granted under the Fourth Amendment in their First Amended Complaint and incorporated herein by reference. At this early stage in the litigation, Plaintiffs easily survive a motion to dismiss as the court must accept all factual allegations as true, and make any inferences in favor of Plaintiffs. *See, e.g., Han Kim v. Democratic People's Republic of Korea*, 774 F.3d 1044 (D.C. Cir. 2014); *Caldwell v. Hammonds*, 53 F.Supp.2d 1 (D.C. Cir. 1999). Further, Defendants do not assert an objection to Plaintiffs' Fourth Amendment claims. Subsequently, Plaintiffs' Fourth Amendment claims should stand.

B. Plaintiffs have alleged sufficient facts to support their claims under §§ 1981 and 1983.

First, § 1983 allows for claims against the Defendant [REDACTED], as held by the Supreme Court in a case Defendants themselves cite in their previous Motion to Dismiss and Motion for Summary Judgment:

Local governing bodies (and local officials sued in their official capacities) can, therefore, be sued directly under § 1983 for monetary, declaratory, and injunctive relief in those situations where, as here, the action that is alleged to be unconstitutional implements or executes a policy statement, ordinance, regulation, or decision officially adopted or promulgated by those whose edicts or acts may fairly be said to represent official policy. In addition, local governments, like every other § 1983 "person," may be sued for constitutional deprivations visited pursuant

to governmental "custom" even though such custom has not received formal approval through the government's official decision-making channels.

Monell v. Department of Social Services of City of New York, 436 U.S. 658, 659 (1978).

Plaintiffs maintain that they have pled sufficient facts when, construed in favor of Plaintiffs, support their claims against Defendant [REDACTED]. *See Am. Compl.* Second, D.C. Courts have noted that § 1981 addresses substantive rights under the Constitution, “and section 1983 remains the only provision to expressly create a remedy against persons acting under color of state law. The distinction is significant because rights and remedies are separate concepts.” *Brown v. Sessoms*, 774 F.3d 1016 (D.C. Cir. 2014) (internal quotation marks omitted). Thus, because the *remedies* sought by Plaintiffs arise out of § 1983, Plaintiffs claims against the Defendant [REDACTED] are properly made and should not be dismissed.

Finally, Defendants’ own footage of the arrest filed under seal with this Court, in addition to the facts alleged by Plaintiffs in their First Amended Complaint and incorporated here by reference, show a shocking nonchalance of both Defendants [REDACTED] and [REDACTED] that could reasonably be found to demonstrate a habitual practice by Metropolitan Police officers in conducting arrests based on alleged “barring notices” without even exchanging words with the person they are arresting and therefore actively escalating an exchange in contravention of their own use of force and other policies, which Plaintiffs intend to prove at trial. Therefore, Plaintiffs claims against the Defendant [REDACTED] should stand.

II. Summary Judgment is inappropriate because Plaintiffs have alleged material facts that are in dispute and have not yet had an opportunity for discovery.

The courts have found that “summary judgment is premature unless all parties have had a full opportunity to conduct discovery.” *Jeffries v. Barr*, 965 F.3d 843 (D.C. Cir. 2020) (internal quotation marks omitted)). In addition, the D.C. Circuit Court has acknowledged that while

summary judgment has “enabled district judges to weed out baseless claims [it has done so] without disturbing the possibly meritorious cases in which plaintiffs need some discovery in order to vindicate their constitutional rights...” *ACLU Foundation of Southern California v. Barr*, 952 F.2d 457 (D.C. Cir. 1992). Plaintiffs hereby incorporate their Statement of Facts in Dispute in Opposition to Defendant Moe’s Motion for Summary Judgment.

Therefore, because Plaintiffs dispute the validity, authenticity, and existence of a Barring Notice at the time of Mr. [REDACTED]’s arrest, and because that fact is “material” to Plaintiffs’ claims, the Court should deny Defendant [REDACTED] Motion for Summary Judgment.

CONCLUSION

For these reasons, this Court should DENY Defendant [REDACTED] Motion to Dismiss as to all claims, except to GRANT Defendants’ Motion to Dismiss as to Plaintiffs’ Fifth Amendment claims, and; DENY Defendant [REDACTED] Motion for Summary Judgment.

Dated: March 7, 2022

Respectfully Submitted,

By:

[REDACTED]

Attorney for Plaintiffs